

doubt upon these facts could not be considered either by the opposition division or the board of appeal.

Where the board, in the decision remitting the case to the department of first instance, is silent on the question of the adaptation of the description, this does not necessarily imply that no adaptation is required, but merely that the matter was not considered or decided. The point is therefore not *res judicata* and so can be raised in a subsequent appeal (**T 636/97**).

11. Reimbursement of appeal fees

11.1. Introduction

According to R. 103(1)(a) EPC (R. 67 EPC 1973) the reimbursement of appeal fees is ordered in the event of interlocutory revision or where the board of appeal deems an appeal allowable, if such reimbursement is equitable by reason of a substantial procedural violation.

R. 103(1)(b) EPC, introduced with the EPC 2000, goes some way towards compensating for the lack of a cross-appeal facility. Appeals filed as a precaution – in case the other party appeals – can be withdrawn if the other party does not file an appeal, at an early stage of the proceedings, during the period between the expiry of the respective periods for filing the notice of appeal and filing the statement of grounds of appeal, i.e. before any great expense or effort on the part of the parties or the EPO (see notes to R. 67 EPC 1973, OJ SE 1/2003, 184).

R. 103(2) EPC, introduced by decision of the Administrative Council of 13 December 2013 (CA/D 16/13; OJ 2014, A3), provided for a reimbursement of the appeal fee at 50% if the appeal was withdrawn after expiry of the period under R. 103(1)(b) EPC provided the requirements set out under R. 103(2)(a) and (b) were met. This provision was amended by the decision of the Administrative Council of 12 December 2019 (CA/D 14/19; OJ EPO 2020, A5), which entered into force on 1 April 2020. Following these amendments, the appeal fee may be reimbursed at 75% (R. 103(2) EPC), 50% (R. 103(3) EPC), or 25% (R. 103(4) EPC) if the appeal is withdrawn (or a request for oral proceedings is withdrawn in the case of R. 103(4)(c) EPC) and the requirements set out in the respective provisions are met (see in this chapter V.A.11.9. and following).

R. 103(6) EPC (formerly R. 103(2) EPC; then R. 103(3) EPC until the latest revision of 1 April 2020) governs the competence of the department of first instance and of the board of appeal in the matter of the reimbursement of the appeal fee and codifies the case law of the Legal Board of Appeal (**J 32/95**, OJ 1999, 733; **G 3/03**, OJ 2005, 344; see in this chapter V.A.11.4.2. "Competence to decide on reimbursement").

For the rules formally applicable to patent applications pending on the date of entry into force of the EPC 2000, see **J 10/07** (OJ 2008, 567); for the applicability of R. 103(1)(b) EPC see **T 2052/08**.

11.2. Examination ex officio

The boards may, even in the absence of a request to this effect, examine ex officio whether the reimbursement of the appeal fee is equitable by reason of a substantial procedural violation (J 7/82, OJ 1982, 391; T 271/85 of 22 March 1989; T 346/88; T 598/88; T 484/90, OJ 1993, 448 and T 736/14).

11.3. Appeal deemed not to have been filed

11.3.1 Appeal deemed not to have been filed due to late filing of the notice of appeal and/or late payment of the appeal fee

For the issue of reimbursement of the appeal fee the distinction between an appeal not deemed to have been filed and an inadmissible appeal is relevant. When the appeal is deemed not to have been filed the appeal fee must be reimbursed since the purpose of this fee cannot be achieved. On the contrary, when an appeal is inadmissible it is in principle not possible to repay the appeal fee (T 445/98; see also T 372/99 and T 752/05).

As a result of diverging case law on this distinction, the President of the European Patent Office referred a point of law to the Enlarged Board of Appeal. The latter answered the referred question in Opinion G 1/18 (OJ 2020, A26) on whether an appeal is to be treated as not filed or as inadmissible in cases of a failure to observe the two-month time limit under Art. 108 EPC owing to belated payment of the appeal fee and/or belated filing of notice of appeal. This question had previously been submitted to the Enlarged Board in G 1/14 and G 2/14 – however the question had not been addressed because in G 1/14 the referral was found to be inadmissible and in G 2/14 the patent application was abandoned.

According to G 1/18, the different factual scenarios falling within the scope of the referred question and encountered in earlier case law should be treated as follows.

An appeal is deemed not to have been filed in the following cases: (a) where notice of appeal was filed within the two-month time limit prescribed in Art. 108, first sentence, EPC and the appeal fee was paid after expiry of that two-month time limit; (b) where notice of appeal was filed after expiry of the two-month time limit prescribed in Art. 108, first sentence, EPC and the appeal fee was paid after expiry of that two-month time limit; (c) where the appeal fee was paid within the two-month time limit prescribed in Art. 108, first sentence, EPC for filing notice of appeal and notice of appeal was filed after expiry of that two-month time limit.

In the cases referred to in (a), (b) and (c) in the preceding paragraph, reimbursement of the appeal fee is to be ordered ex officio.

In addition, where the appeal fee was paid within or after the two-month time limit prescribed in Art. 108, first sentence, EPC for filing notice of appeal and no notice of appeal was filed at all, the appeal fee is to be reimbursed.

With this ruling, the Enlarged Board effectively overruled earlier decisions in which, where facts were the same as envisaged in G 1/18, the appeal fee was not reimbursed because the board considered that the appeal was inadmissible. For an overview of relevant decisions predating G 1/18, see Case Law of the Boards of Appeal, 9th ed. 2019, V.A.9.3 "Appeal deemed not to have been filed or inadmissible appeal".

11.3.2 Translation of notice of appeal

In T 323/87 (OJ 1989, 343) the translation of the notice of appeal had not been filed in due time. The board held that, pursuant to Art. 14(5) EPC 1973, the notice of appeal was deemed not to have been filed, and ordered reimbursement of the appeal fee. In T 1152/05 it was also decided that, since the appeal of the patent proprietor was deemed not to have been filed, it followed that the appeal fee was paid without reason and had to be reimbursed. In T 126/04, on the other hand, the board decided that failure to file a translation of the notice of appeal in due time meant that the appeal was inadmissible.

11.3.3 No legal ground for payment

The grounds for reimbursement listed in R 103(1) EPC aside, fees may also be refunded if there was no legal ground for their payment, e.g. in the event of payment by mistake or overpayment, unless this amount is insignificant: see Art. 12 RFees e contrario as interpreted in T 1284/09.

11.3.4 Request for re-establishment in respect of the time limit for filing the notice of appeal and/or for paying the appeal fee

In T 1192/07 the request for re-establishment in respect of the time limit for paying the appeal fee was refused. As a result, the appeal was deemed not filed because the appeal fee had not been paid in time and the appeal fee was refunded.

In T 1465/08 the board refunded the appeal fee in a case where the request for re-establishment in respect of the time limit for paying the appeal fee was itself deemed not to have been filed with the consequence that the appeal was deemed not to have been filed.

In T 257/07 the request for re-establishment in respect of the time limit for filing the notice of appeal was refused, and therefore the appeal was deemed not to have been filed and the appeal fee reimbursed (see also T 1962/08).

11.3.5 No legal basis for retaining appeal fee in case of intervention in opposition appeal proceedings

In T 791/06 the intervention of appellant III was considered by the board to be an admissible intervention in opposition appeal proceedings, and so only the required opposition fee needed to be paid, as established by G 3/04. Hence there was no legal basis for retaining the appeal fee, which in any case had been paid as a precaution. The board concluded that the appeal fee paid by the intervener should be reimbursed.

11.3.6 Several appellants

In T 552/97 the board interpreted R. 67 EPC 1973, looking in particular at the English text, as meaning that, where several appeals have been filed, each appellant's appeal fee may be reimbursed if such reimbursement was equitable.

11.3.7 No reimbursement if appeal filed in accordance with the requirements of Article 108 EPC

In J 15/01 the Legal Board ruled that the fact that an appeal was against a communication, as opposed to a decision under Art. 106(1) EPC 1973, did not justify refunding the appeal fee. If – as in the case before it – the board concluded that there had not been an appealable decision under Art. 106(1) EPC 1973, this made the appeal inadmissible but did not mean it had never existed, the requirements under Art. 108 EPC 1973 having been met. The appeal fee could not therefore be refunded.

In J 18/12 the Legal Board held that the final non-existence of the patent application in a substantive sense did not mean that the appeal proceedings had not come into existence (as opposed to the legal fiction of non-existence when an appeal was deemed not to have been filed). This situation regularly arose in proceedings before the EPO, e.g. where a decision of the Receiving Section not to accord a filing date was appealed.

In T 1284/09 the board did not order reimbursement of the appeal fee for either of the two appeals because the requirements of Art. 108 EPC were fulfilled for each of the appeals. The original opponent and its purported assignee (the opposition division had rejected the assignment request) had each filed an identical notice of appeal against the same decision and each separately paid the appeal fee.

11.4. Reimbursement of appeal fee in case of interlocutory revision

The appeal fee may be reimbursed in full under R. 103(1)(a) EPC in the event of interlocutory revision.

11.4.1 Requirements

Pursuant to Art. 109 EPC a department whose decision is contested must rectify its decision if it considers the appeal admissible and well founded; this applies in ex parte cases only. R. 103 EPC (R. 67 EPC 1973) allows for reimbursement of the appeal fee in the case of interlocutory revision. In G 3/03 (OJ 2005, 344) it was held that the grant of interlocutory revision constituted a necessary, but not sufficient, prerequisite for the department of first instance to allow a request for the reimbursement of appeal fees (see also T 1222/04). In T 939/95 the words "if such reimbursement" in R. 103 EPC were held to refer both to interlocutory revisions and appeals, meaning that it was also a prerequisite for interlocutory hearings that a substantial procedural violation had occurred and that reimbursement was found equitable in the discretion of the deciding body (see also T 79/91, T 536/92).

11.4.2 Competence to decide on reimbursement

As to the question of which department is competent to decide on the request for reimbursement, in cases of interlocutory revision, the legal situation defined by G 3/03 (OJ 2005, 344) and J 32/95 (OJ 1999, 733) is now enshrined in R 103(6) EPC (see T 625/09, T 206/10). In J 32/95 the Legal Board held that if the department of first instance considered the request for reimbursement of the appeal fee not to be well-founded in the event of interlocutory revision, it had to remit the request to the board of appeal for a decision. In G 3/03 the Enlarged Board of Appeal held that in the event of interlocutory revision under Art. 109(1) EPC 1973, the department of first instance whose decision had been appealed was not competent to refuse a request from the appellant for reimbursement of the appeal fee. The board of appeal which would have been competent under Art. 21 EPC 1973 to deal with the substantive issues of the appeal if no interlocutory revision had been granted was competent to decide on the request. G 3/03 was, for example, applied in T 1379/05, T 1315/04, T 245/05, T 1863/07 and T 2352/13.

In T 21/02 the board, distinguishing the facts from G 3/03 and J 32/95, held that it was not empowered to decide on the request for reimbursement of the appeal fee as the request had been submitted in the absence of a pending appeal and hence could not constitute an ancillary issue to be dealt with in appeal proceedings. An appeal had been fully dealt with by interlocutory revision by the department of first instance and was thus no longer pending when a request for reimbursement of the appeal fee was submitted (see also T 1703/12, T 2134/12, T 2008/14).

In T 242/05 the board held that once interlocutory revision had been granted, the appeal was *res judicata*. In the absence of a pending appeal, any request for reimbursement of the appeal fee filed after the decision to grant interlocutory revision will be considered inadmissible, regardless of whether the decision was taken by the examining division or the board of appeal as the body competent to consider the appeal (see also T 70/08).

In T 893/13 the board disagreed with T 21/02 and T 242/05, and found that since the examining division was not competent to decide that the appeal fee was not to be reimbursed, an interlocutory revision without an order for reimbursement could not be construed as a decision not to reimburse. The board further stated that a request for reimbursement of the appeal fee could be validly filed even after interlocutory revision, since R 103(3) EPC (now R 103(6) EPC) entrusted the boards with the decision on all other matters of reimbursement based on only two conditions: that the decision was rectified and that the appeal fee was not reimbursed by the examining division.

In T 657/17 interlocutory revision was granted by the examining division yet the matter was referred to the board for a decision on reimbursement of the appeal fee in the absence of any request for such reimbursement. The board referred to G 3/03 (point 3 of the Reasons) according to which, in the absence of a request for reimbursement of the appeal fee, the decision of the department of the first instance granting interlocutory revision pursuant to Art. 109(1) EPC should make no mention of the issue of reimbursement of the appeal fee, and the appellant would not be adversely affected by the decision. In the case